

Independent Contractor Agreement

This Independent Contractor Agreement (“Agreement”) is made and entered into by the undersigned parties on the last date of signature below, by and between, **Bargain Technologies INC, also known as Vantage Circle** (known as the “Company”) having office located at 4512 Legacy Drive, Suite 100, Plano, TX 75024 and **Bridge Strategy Services Inc.** (known as the “Contractor”) having office located at 103 Merrick Street, Toronto, ON. M6R1E1.

In consideration of the promises, rights and obligations set forth below, the parties hereby agree as follows:

1. Term

The term of this Agreement shall begin on **July 8th, 2024** (“Effective Date”) and continue until **July 8th, 2028**, unless terminated earlier as set forth in this Agreement. The term of this Agreement may be extended by mutual agreement in writing between the parties.

2. Services

The Contractor will provide the following services:

Strategy consulting & advisory services for Company’s internal purposes which will include:

- Strategies to optimize Company revenue and profit contribution for gift card programs globally. Gift cards include closed loop (examples include but are not limited to.: Home Depot/Best Buy, etc) as well as open loop (examples include but are not limited to VISA/MC, etc).
- (“**Licensed Strategy**”) specifically developed for Company to legally recognize revenue on unredeemed gift cards & gift card balances in the United States and other applicable markets internationally as agreed to by both parties (“**Additional Breakage Revenue**”) including product and UX optimization.
- Ongoing strategic advice to optimize Company revenue and profit contribution during the term.

The Contractor shall take direction from **Partha Pratim Kalita Neog** of the Company or any other person as authorized by the Company from time to time. Additional services or amendments to the services described above may be agreed upon between the parties in writing and from time to time.

3. Currency

Except as otherwise provided for in this Agreement, all monetary amounts referred to in this Agreement are in USD (US Dollars).

4. Compensation

Subject to providing the Licensed Strategy as outlined above, the Company will pay the Contractor a twenty (20%) commission of 90% of the **Additional Breakage Revenue**. **Additional Breakage Revenue** for the purpose of commission shall be total revenue recognized, in pursuant to the Licensed Strategy, on unredeemed gift card and gift card balances and will

take place no later than the first day of the seventh month after a customer order has been fulfilled in the United States. The parties will agree, in good faith, to a mutually agreeable Additional Breakage Revenue model for gift card orders fulfilled in India. Additional Breakage Revenue payments to the Contractor for the Licensed Strategy will be capped at maximum \$15,000 per month for the initial 12 months, followed by maximum \$10,000 per month for the subsequent 12 months, and then \$10,000 per month for the succeeding 12 months, in chronological order up to a maximum of 36 months.

By way of example, here is a sample Additional Breakage Revenue and associated payment schedule to Contractor:

Year 1 Example												
Customer order fulfillment month	Aug-24	Sep-24	Oct-24	Nov-24	Dec-24	Jan-25	Feb-25	Mar-25	Apr-25	May-25	Jun-25	Jul-25
Month breakage revenue recognized & payment made to Bridge Strategy	01-Mar-25	01-Apr-25	01-May-25	01-Jun-25	01-Jul-25	01-Aug-25	01-Sep-25	01-Oct-25	01-Nov-25	01-Dec-25	01-Jan-26	01-Feb-26
Customer order volume	\$ 1,000,000	\$ 1,000,000	\$ 1,000,000	\$ 1,000,000	\$ 1,000,000	\$ 1,000,000	\$ 1,000,000	\$ 1,000,000	\$ 1,000,000	\$ 1,000,000	\$ 1,000,000	\$ 1,000,000
Breakage revenue (example)	\$ 60,000.00	\$ 60,000.00	\$ 60,000.00	\$ 60,000.00	\$ 60,000.00	\$ 60,000.00	\$ 60,000.00	\$ 60,000.00	\$ 60,000.00	\$ 60,000.00	\$ 60,000.00	\$ 60,000.00
Bridge strategy payment	\$ 12,000.00	\$ 12,000.00	\$ 12,000.00	\$ 12,000.00	\$ 12,000.00	\$ 12,000.00	\$ 12,000.00	\$ 12,000.00	\$ 12,000.00	\$ 12,000.00	\$ 12,000.00	\$ 12,000.00
Year 2 Example												
Customer order fulfillment month	Aug-25	Sep-25	Oct-25	Nov-25	Dec-25	Jan-26	Feb-26	Mar-26	Apr-26	May-26	Jun-26	Jul-26
Month breakage revenue recognized & payment made to Bridge Strategy	01-Mar-26	01-Apr-26	01-May-26	01-Jun-26	01-Jul-26	01-Aug-26	01-Sep-26	01-Oct-26	01-Nov-26	01-Dec-26	01-Jan-27	01-Feb-27
Customer order volume	\$ 1,500,000	\$ 1,500,000	\$ 1,500,000	\$ 1,500,000	\$ 1,500,000	\$ 1,500,000	\$ 1,500,000	\$ 1,500,000	\$ 1,500,000	\$ 1,500,000	\$ 1,500,000	\$ 1,500,000
Breakage revenue (example)	\$ 90,000.00	\$ 90,000.00	\$ 90,000.00	\$ 90,000.00	\$ 90,000.00	\$ 90,000.00	\$ 90,000.00	\$ 90,000.00	\$ 90,000.00	\$ 90,000.00	\$ 90,000.00	\$ 90,000.00
Bridge strategy payment	\$ 10,000.00	\$ 10,000.00	\$ 10,000.00	\$ 10,000.00	\$ 10,000.00	\$ 10,000.00	\$ 10,000.00	\$ 10,000.00	\$ 10,000.00	\$ 10,000.00	\$ 10,000.00	\$ 10,000.00
Year 3 Example												
Customer order fulfillment month	Aug-26	Sep-26	Oct-26	Nov-26	Dec-26	Jan-27	Feb-27	Mar-27	Apr-27	May-27	Jun-27	Jul-27
Month breakage revenue recognized & payment made to Bridge Strategy	01-Mar-27	01-Apr-27	01-May-27	01-Jun-27	01-Jul-27	01-Aug-27	01-Sep-27	01-Oct-27	01-Nov-27	01-Dec-27	01-Jan-28	01-Feb-28
Customer order volume	\$ 2,000,000	\$ 2,000,000	\$ 2,000,000	\$ 2,000,000	\$ 2,000,000	\$ 2,000,000	\$ 2,000,000	\$ 2,000,000	\$ 2,000,000	\$ 2,000,000	\$ 2,000,000	\$ 2,000,000
Breakage revenue (example)	\$ 120,000.00	\$ 120,000.00	\$ 120,000.00	\$ 120,000.00	\$ 120,000.00	\$ 120,000.00	\$ 120,000.00	\$ 120,000.00	\$ 120,000.00	\$ 120,000.00	\$ 120,000.00	\$ 120,000.00
Bridge strategy payment	\$ 10,000.00	\$ 10,000.00	\$ 10,000.00	\$ 10,000.00	\$ 10,000.00	\$ 10,000.00	\$ 10,000.00	\$ 10,000.00	\$ 10,000.00	\$ 10,000.00	\$ 10,000.00	\$ 10,000.00

Upon execution of the agreement, Company will provide Contractor with an upfront payment of \$5,000USD/month which will be netted against future Breakage Revenue payments from Company to Contractor.

The Company will be invoiced on the 15th day of each month by Contractor, with respect to the amount recognized as revenue by the Company as **Additional Breakage Revenue**, with payment due within **10** business days of receipt of the invoice, and payment will be made via ACH or any other banking channel as may be agreed between the parties to an account designated by Contractor. The Company will provide Contractor with a Breakage report each month so that Contractor may reconcile Additional Breakage Revenue payments from Company. The parties will mutually agree on an acceptable format for the Breakage report.

6. Independent Contractor Relationship

The Contractor will provide the Contractor's services to the Company as an independent contractor and not as an employee.

Accordingly:

- The Contractor agrees that the Company shall have no liability or responsibility for the withholding, collection or payment of any taxes, employment insurance premiums or government pension plan contributions on any amounts paid by the Company to the Contractor or amounts paid by the Contractor to its employees or contractors. The Contractor also agrees to indemnify the Company from any and all claims in respect to the Company's failure to withhold and/or remit any taxes, employment insurance premiums or government pension plan contributions.

- The Contractor agrees that as an independent contractor, the Contractor will not be qualified to participate in or to receive any employee benefits that the Company may extend to its employees.
- The Contractor has no authority to and will not exercise or hold itself out as having any authority to enter into or conclude any contract or to undertake any commitment or obligation for, in the name of or on behalf of the Company.

7. Representations and Warranties including obligations

The Contractor hereby represents and warrants to the Company as of the date of this Agreement and at each time during the Term as follows:

- it has legal capacity and authority to execute, deliver and perform its obligations under this Agreement and to carry out the transactions contemplated hereby;
- all the strategies and consultation provided by the Contractors are in compliance with the applicable law;
- the obligations of the Contractor under this Agreement will be legally valid, binding and enforceable against the Contractor in accordance with the terms hereof;
- the information furnished by the Contractor to the Company is true and accurate in all respects;
- there are no actions, suits, proceedings, or investigations pending or, to the best of the its knowledge, threatened against it before any court or before any other judicial, quasi-judicial or other authority, the outcome of which may result in the breach of or constitute a default by the Contractor under this Agreement or which individually or in the aggregate may result in any impairment of its ability to perform its obligations under this Agreement.

Company's Obligations

The Company will use commercially reasonable efforts implement the Licensed Strategy by Nov 1st, 2024 ("specified date"), and will provide Contractor with bi-weekly updates on project status. In the event that the Licensed Strategy is not implemented by the specified date, both parties agree to work in good faith to determine a new implementation date.

8. Termination for Convenience

The Company reserves the right to terminate this agreement for any reason within the first fifteen (15) days following the execution of the contract. Upon termination, the Company's license to use the "Licensed Strategy" shall be revoked, and the Company must cease all use of and destroy all copies of the Licensed Strategy and any of the Contractors Confidential Information and IP, and certify compliance in writing.

Notwithstanding anything contained herein, the Contractor shall not be eligible to any commission/ fee compensation after the effective date of termination or expiry of the Agreement, as the case may be.

Early Termination for Cause: The Company may immediately terminate this Agreement by providing written notice to the Contractor, if the Contractor fails to fulfill any of its obligations under this Agreement, or breaches representations and warranties, and violates any applicable laws or regulations.

In case of expiry of term of the Agreement the License Strategy shall be the property of the Company and Company reserves the right to use it for its business as well as commercial purpose without any further liability to the Contractor.

9. Confidentiality and Intellectual Property

Both parties agree that they will not disclose, divulge, reveal, report or use, for any purpose, any information that is treated as confidential and proprietary by either party, including, without limitation, customer and client lists, business plans, marketing plans, financial information, technical information, transaction documents, contact sheets, investor or prospect lists, experimental work, suppliers of customers and clients, Licensed Strategies and any other information which is disclosed to either party in confidence and which has economic value to either party because of its secrecy, in each case whether spoken, written, printed, electronic or in any other form or medium (collectively, "**Confidential Information**").

The obligations of confidentiality will apply during the Term and will end on the termination of this Agreement except in the case of any Confidential Information which is a Licensed Strategy in which case those obligations will last indefinitely. All written and oral information and material disclosed or provided by either party under this Agreement is Confidential Information regardless of whether it was provided before or after the date of this Agreement.

If, either during the Term or after the termination of this Agreement, the parties are compelled or required to disclose any Confidential Information by law or court order or pursuant to any requirement, request or process of any legal, regulatory or governmental authority, the parties shall:

- A. give prompt prior written notice of such requirement, request or process so that each may seek an appropriate protective order or other remedy; and
- B. cooperate with each other to obtain such protective order or other remedy.

The Licensed Strategy and related material that is developed or produced under this Agreement, will be and remain the Intellectual Property of the Contractor. The Company is granted a perpetual, non-exclusive, non-transferable, royalty-free license to use the Licensed Strategy for Company's internal business purposes. Contractor retains all right, title, and interest in and to the Licensed Strategy, including any and all intellectual property rights therein.

In the event of the expiration of the term of the Agreement or early termination for cause, the License Strategy shall be the property of the Company and Company reserves the right to use it for its business as well as commercial purpose without any liability to the Contractor. No royalty or other payment will be due to the Contractor from the Company in respect of any Intellectual Property developed or modified in pursuant to the Agreement and the Contractor will at the Company's request and expense, assign to the Company its title to any Intellectual Property and to any applications made thereon, and will execute all instruments necessary for the filing and

prosecution of any applications in any country or any division or continuation thereof or for any reissue of any patent or other right issued on any such application. All documents, data and other records obtained from the Company or created by the Contractor as a result of the Agreement will be and remain the property of the Company. Such documents, data, disclosed Confidential Information and other records must be kept safely and securely and must be promptly returned to the Company upon expiry or termination of the Agreement.

10. Obligations Surviving Termination of this Agreement

All obligations to preserve the Confidential Information, Indemnity, Limitation of Liability, Intellectual Property, Compensation and other warranties and representations set forth herein shall survive the term of this Agreement.

11. Entire Agreement

This Agreement represents the entire agreement between the parties and the provisions of this Agreement shall supersede all prior oral and written commitments, contracts and understandings with respect to the subject matter of this Agreement. This Agreement may be amended only by mutual written agreement of the party

12. Assignment

This Agreement shall inure to the benefit of and shall be binding upon each party's successors and assigns. Neither party shall assign any right or obligation hereunder in whole or in part, without the prior written consent of the other party. However, the Company may assign any or all rights or obligations to its holding, subsidiary or step-down subsidiary company.

13. Injunctive Relief; Enforcement.

Nothing in this Agreement will prevent the Company from seeking injunctive relief and or filing legal action against the Contractor with respect to any violation of intellectual property rights, confidentiality obligations, payment of monies owed hereunder or in violation of any terms and conditions of the Agreement, or enforcement or recognition of any award or order in any appropriate jurisdiction.

14. Governing Law and Principles of Construction.

This Agreement shall be governed and construed in accordance with Ontario law. If any provision in this Agreement is declared illegal or unenforceable, the provision will become void, leaving the remainder of this Agreement in full force and effect.

15. Indemnity & Limitation of Liability

Indemnity: The Contractor agrees to indemnify, defend, insure, and hold harmless the Company & its affiliates, its officers, directors, employees, and agents from and against any and all claims, demands, actions, liabilities, damages, losses, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to:

- i. Any breach of this Agreement by the Contractor;

- ii. Any misconduct, negligent or wrongful act or omission of the Contractor, its employees, agents, or subcontractors in connection with the performance of services under this Agreement;
- iii. Any infringement or alleged infringement of any intellectual property rights arising from the services provided by the Contractor;
- iv. Any violation of applicable laws, regulations, or industry standards by the Contractor in the course of providing services under this Agreement.

The obligations of indemnity shall survive the termination or expiration of this Agreement.

Limitation of Liability: In no event shall the Company be liable for any indirect, incidental, special, consequential, or punitive damages, including loss of profits, revenue, or data, arising out of or in connection with this Agreement, even if the Company has been advised of the possibility of such damages. Notwithstanding anything contained in the Agreement, the Company's only liability to the Contractor is to pay the compensation in pursuant to the Agreement. Apart from this,

16. Language

The parties have expressly requested that this Agreement be drawn in English language only.

IN WITNESS WHEREOF, the parties hereto have caused this Agreement to be executed by their duly authorized representatives, effective as of the day and year first above written.

BARGAIN TECHNOLOGIES, INC

BRIDGE STRATEGY SERVICES INC.

By: Nikhil Norula

By: 

Name: Nikhil Norula

Name: Tristan Roffey

Date: 07/03/24

Date: 07/03/24